



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

MAY 22 2000

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9017
(SECOND REVISION)

EXPIRATION DATE: April 30, 2002

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Eurotainer, S.A.
Paris, France
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the transportation in commerce of a non-DOT specification portable tank for use in transporting Class 8 material. This exemption provides no relief from any Hazardous Materials Regulation (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.243 in that non-DOT specification portable tanks are authorized herein.
5. BASIS: This exemption is based on the application of Eurotainer, S.A. dated April 12, 2000, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Hydrogen fluoride, anhydrous	8	UN1052	I

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a non-DOT specification portable tank, mounted in an ISO frame, designed and constructed in accordance with Westerwalder Eisenwerk drawings CS-734-1c, CS-734-3b and list of drawings in CS-734 all dated February 4, 1983, and the technical specifications and calculations on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA) and in compliance with the following:

- (1) Code -- Complies with DOT Specification 51 except the tanks are not ASME Code stamped; IMO Type 5.
- (2) Insulation -- None.
- (3) Water Capacity (U.S. Gallons) -- 5,020.
- (4) Material -- German steel TT St E 36 equivalent to ASTM A 516 Grade 70.

(outside dia.)X(length)X(thickness)

- (5) Tank Size (inches) 82.68 236.22 0.433

Head Thickness -- 0.433

Weld Joint Efficiency -- 1.0

Corrosion Allowance -- 0.059

- (6) Design Pressure (PSIG) -- 101.5

Note: Design pressure means "maximum allowable working pressure (MAWP)" as used in the ASME Code.

- (7) Test Pressure, Minimum (PSIG) -- 152.3
- (8) Openings -- One(1), 19.7 inch diameter manhole containing the gas equalizer connection and the filling/discharge connection and one(1), 10.2 inch diameter safety relief device opening on the top; BOTTOM OUTLETS ARE PROHIBITED.
- (9) Tank surface area (square feet) -- 452.
- (10) Safety Relief Devices -- One(1), 3.0 inch diameter spring loaded safety relief valve outboard of and in series with one(1), 3.0 inch diameter rupture disc all set at 112 psig. Total relief device capacity is 522,657 SCFH.
- (11) G-Loadings: Vertical down 2; Vertical up 2; Longitudinal 2; and Transverse 2.
- (12) Maximum Gross Weight (pounds) -- 57,320.
- (13) Maximum Commodity Weight (pounds) --43,210.
- (14) Tare Weight (pounds) -- 14,110.
- (15) Design Specific Gravity -- 1.03.
- (16) Design Temperature (°F) -- 122.

8. SPECIAL PROVISIONS:

- a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.
- b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

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- c. Each portable tank must be plainly marked on both sides near the middle, in letters at least two inches high on a contrasting background, "DOT-E 9017".
 - d. Hydrostatic test certificates for each tank must be maintained by the owner or manufacturer at its principal business office and be made available to any representative of the DOT upon request.
 - e. A test report documenting a satisfactory ISO prototype test for this tank design must be on file with the OHMEA prior to the first shipment.
 - f. The tank must be filled so as not to be liquid full at less than or equal to 130°.
 - g. Each tank must be (i) visually inspected prior to each trip to insure that it has not been damaged on the previous trip; and (ii) retested and reinspected once every five(5) years in accordance with § 173.32 as prescribed for DOT Specification 51 portable tanks.
 - h. Portable tanks may not be transported in container-on-flat car (COFC) or trailer-on-flat car (TOFC) service except under conditions approved by the OHMEA.
 - i. DOT-E 9017 must be stamped on the metal manufacturer's data plate on the line which reads DOT Specification No.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel.
10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each vessel used to transport packages covered by this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


for Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for
Hazardous Materials Safety, Research and Special Programs
Administration, Department of Transportation, Washington, D.C.
20590.

Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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Copies of exemptions may be obtained from the AAHMS, U.S.
Department of Transportation, 400 7th Street, Washington, DC
20590-0001, Attention: Records Center, 202-366-5046.

PO: sdc